

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL APPELLATE JURISDICTION)

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza

Death Reference No.119 of 2017

The State

.... Petitioner

-Versus-

Sudhangsu Sen and others

.... Respondents/condemn prisoners

With

Criminal Appeal No.9901 of 2017

Sudhangsu Sen and another

.... Convict-Accused-Appellants

-Versus-

The State

... Respondent

With

Criminal Appeal No.1044 of 2018

Jabed Miah @ Jabed @ Sabuj

....Convict-Accused-Appellant

-Versus-

The State

.... Respondent

With

Criminal Appeal No.1293 of 2018

Jhanu Mia @ Jahnna Chora

.... Convict-Accused-Appellant

-Versus-

The State

... Respondent

With

Criminal Appeal No.10047 of 2017

Shanu Bhuiyan @ Md. Shanu Bhuiyan

.... Convict-Accused-Appellant

-Versus-

The State

.... Respondent

With

Criminal Appeal No.10188 of 2017

Kamal Miah

.... Convict-Accused-Appellant

-Versus-

The State

.... Respondent

With

Criminal Appeal No.10191 of 2017

Abdul Malek @ Malu

.... Convict-Accused-Appellant

-Versus-

The State

.... Respondent

With

Criminal Appeal No.10725 of 2017

Abu Sayed

.... Convict-Accused-Appellant

-Versus-

The State

.... Respondent

With

Criminal Appeal No.10989 of 2017

Amir Ali

....Convict-Accused-Appellant

-Versus-

The State

.... Respondent

With

Criminal Appeal No.11385 of 2017

Mosharaf

....Convict-Accused-Appellant

-Versus-

The State

.... Respondent

With

Criminal Appeal No.11793 of 2017

Mostaq Ahmmad @ Foyso

....Convict-Accused-Appellant

-Versus-

The State

.... Respondent

With

Criminal Appeal No.14434 of 2017

Lal Miah @ Abul Lal

.... Convict-Accused-Appellant

-Versus-

The State

.... Respondent

With

Jail Appeal No.383 of 2017

Shuvas Sen

.... Convict-Accused-Appellant

-Versus-

The State

... Respondent

With

Jail Appeal No.384 of 2017

Sudhangsu Sen

.... Convict-Accused-Appellant

-Versus-

The State

.... Respondent

With

Jail Appeal No.385 of 2017

Md. Abdul Malek @ Malu

....Convict-Accused-Appellant

-Versus-

The State

.... Respondent

With

Jail Appeal No.390 of 2017

Mosharaf

.... Convict-Accused-Appellant

-Versus-

The State

.... Respondent

With

Jail Appeal No.451 of 2017

Ali Miah @ Abu Lal

.... Convict-Accused-Appellant

-Versus-

The State

... Respondent

And

Jail Appeal No.220 of 2019

Ershad

.... Convict-Accused-Appellant

-Versus-

The State

.... For the State

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Mr. Munsurul Haque Chowdhury. Senior
Advocate with

Mr. Mohammad Shafikul Islam Ripon, Advocate

.... For the convict-Accused-Appellants Amir
Ali and Lal Miah @ Abu Lal (in Criminal Appeal
Nos.10989 of 2017 and 14434 of 2017).

Mr. Aminul Islam with

Mr. Sultana Akter Rubi,

Mr. Mohammad Shahin Mia and

Mr. Momtaz Begum Momo, Advocates

.... For the Convict-Accused-Appellants
Sudhangsu Sen and Kamal Miah (in Criminal
Appeal Nos.9901 of 2017 and 10188 of 2017).

Mr. Gouranga Chandra Kar with

Mr. Sarwar Alam and

Mr. Md. Amir Khasru, Advocates

....For Convict-Accused-Appellants Shanu
Bhuiyan and Jabed Miah @ Jabed @ Sabuj (in
Criminal Appeal Nos.10047 of 2017 and 1044 of
2018).

Mr. S.M. Alim, Advocate

.... For Convict-Accused Appellant Abdul
Malek @ Malu (Criminal Appeal No.10191 of
2017).

Mr. M. Sayed Ahmed, Senior Advocate with
Mr. Md. Mohinul Islam, Advocate

.... For the Convict-Accused- Appellant Md.
Mosharaf (in Criminal Appeal No.11385 of 2017).
Mr. M. Ali Murtoza, Advocate

.... For the Convict-Accused-Appellant Jhanu
Mia @ Jhanna Chora (in Criminal Appeal No.1293
of 2018)

Mr. Harun-Or-Rashid, Advocate

.... For the Convict-Accused-Appellant Abu
Sayed (in Criminal Appeal No.10725 of 2017)
Mr. Md. Noor Hossain, Advocate

.... For the Convict-Accused-Appellant
Mostaq Ahmmad @ Foysol (in Criminal Appeal
No.11793 of 2017).

Mr. Sadia Tasnim, learned Advocate

.... For the Convict-Accused-Appellant
Sudhangsu Sen, Mosharaf, Ershad Miah, Ali Miah
@ Abu Lal, Abdul Malek @ Malu (in Jail Appeal
Nos.384 of 2017, 390 of 2017, 220 of 2019, 451 of
2017 and 385 of 2017)

Mr. Hafizur Rahman Khan, State Defence Lawyer

Judgment on 03.01.2024 and 04.01.2024.

S M Kuddus Zaman,J:

This Death Reference under section 374 of the Code of
Criminal Procedure, 1898 has been submitted by the learned

Additional Session Judge, Hobigonj for confirmation of sentence of death passed in Session Case No.511 of 2014 arising out of Madobpur P.S. Case No.09(01)2011 correspondent to G.R. Case No.09 of 2011 against condemned accused (1) Sudhangsu Sen, (2) Suvash Sen, (3) Ershad Miah, (4) Abdul Malek @ Malu, (5) Ataur Rahman, (6) Abul Kashem, (7) Lal Miah @ Abu Lal and (8) Mosharaf under Section 302 of the Penal Code, 1860 after convicting all of them under Sections 302/34 of the Penal Code, 1860.

The learned Additional Session Judge, Hobigon also convicted accused (1) Harmuz Ali, (2) Mustaque Ahmed @ Foysal, (3) Jhanu Mia @ Jahnna Chora, (4) Shanu Bhuiyan, (5) Javed @ Sabuz, (6) Jahirul Islam @ Jahir, (7) Bakul Kha, (8) Amir Ali, (9) Dulal Miah, (10) Abu Sayed, (11) Jahir Miah and (12) Kamal Miah under Section 302 and 34 of the Penal Code and sentenced all of them to imprisonment for life.

The learned Additional Session Judge further convicted accused (1) Ershad Miah, (2) Ataur Rahman, (3) Abul Kashem (4) Lal Miah @ Abu Lal, (5) Mosharaf, (6) Harmuz Ali, (7) Mustaque Ahmed @ Foysal, (8) Jhanu Mia @ Jahnna Chora, (9)

Jabed @ Sabuz, (10) Jahirul Islam @ Jahir, (11) Dulal Miah, (12) Abu Sayed, (13) Jahir Miah and (14) Kamal Miah under Section 449 of the Penal Code and sentenced all of them to imprisonment for life.

All above convicts under Sections 302/34 of the Penal Code were further sentenced to fine of Tk.1,00,000/- each or in default to suffer imprisonment for 6(six) month more and the accused persons convicted under Section 449 of the Penal Code were further sentenced to fine of Tk.50,000/- each or in default to suffer simple imprisonment for 5(five) month more.

Being aggrieved by above judgment and order of conviction and sentence dated 23.08.2017 passed by the learned Additional Session Judge, Hobigonj in Session Case No.511 of 2014 arising out of Madobpur P.S. Case No.09(01)2011 correspondent to G.R. Case No.09 of 2011 above convicted accused persons preferred Criminal Appeal Nos.9901 of 2017, 1044 of 2018, 1293 of 2018, 10047 of 2017, 10188 of 2017, 10191 of 2017, 10725 of 2017, 10989 of 2017, 11385 of 2017, 11793 of 2017 and 14434 of 2017 and Jail Appeal

Nos.383 of 2017, 384 of 2017, 385 of 2017, 390 of 2017, 451 of 2017 and 220 of 2019.

Accused Himanshu Sen died before submission of the charge sheet and condemned-accused_Suvash Sen who was convicted under Sections 302/34 of the Penal Code and sentenced to death has died after submission of this Death Reference and Criminal Appeal No.9901 of 2017 and Jail Appeal No.383 of 2017. As such, Criminal Appeal No.9901 of 2017 in respect appellant of Suvash Sen and Jail Appeal No.383 of 2017 preferred by now deceased convict Suvash Sen have abated.

Above Death Reference, all other Criminal Appeals and Jail Appeals having arisen out of the identical judgment and order of conviction and sentence dated 23.08.2017 passed by the learned Additional Session Judge. Hobigonj in Session Case No.511 of 2014 arising out of Madobpur P.S. Case No.09(01)2011 correspondent to G.R. Case No.09 of 2011 and involved identical questions of facts and laws above Death Reference, Criminal Appeals and Jail Appeals are heard together and being disposed of by this single judgment.

Facts in short are that on 09.01.2011 at 16.30 hours Hasina Akter Baby, wife of victim Ridwanul Mohsin Tipu lodged an ejahar with Madobpur P.S alleging that on 08.01.2011 at 1.00 A.M. hearing sound from the grill of the baranda she and her husband victim Ridwanul Mohsin Tipu woke up and went to the southern room of her father-in-law and saw 10-12 unknown and masked persons armed with lathi and daggers were beating her father-in-law PW4 Mohsin. Her husband victim Ridwanul Mohsin Tipu protested above beating and above persons caught hold of victim Tipu and dragged him into the middle room. About 2-3 persons kicked and pushed her to her bed room and snatched her gold chain and disclosed that they had cut the tendon of victim Tipu. She rushed to the middle room and found her husband beneath the cot. Hearing her alarms her father-in-law and mother-in-law came in the above room and retrieved the body of victim Tipu and started pouring water on his head. She noticed a piercing injury on the chest of victim Tipu. After a while police and PW6 Bodiuzzaman rushed to the occurrence house

and took victim Ridwanul Mohsin Tipu to Nusra Hospital where the Doctor declared him dead.

PW10 Sub-Inspector Abdul Alim prepared the inquest report of dead body of the victim Tipu at 8.30 A.M. in Nusra Hospital and forwarded the dead body for post-mortem examination.

The investigation of the case was assigned to above Abdul Alim who visited the occurrence and prepared a sketch map of the same alongwith an index thereof and seized alamats. He also recorded statement of 10 witnesses under Section 161 of the Code of Criminal Procedure. Due to transfer he handed over the case docate to PW11 Md. Dostagir Ahmmed @ Golam Dostogir Ahmed who recorded statement of Umed Ali and handed over the case record to PW14 Syed Imroz Tarek. PW14 Syed Imroz Tarek conducted the Test Identification Parade of accused Mosharaf and produced accused Ershad to the Judicial Magistrate for recording his confession under Section 164 of the Code of Criminal Procedure and handed over the case docate to PW15 Md. Kamruzzaman Khan who on conclusion of investigation

submitted a charge sheet against 24 accused persons under Sections 449/318/302/114/34 of the Penal Code.

At trial prosecution examined 17 witnesses to bring home the charge leveled against 23 accused persons under Sections 302/449/34 of the Penal Code.

PW1 Jiadur is a Judicial Magistrate who recorded the confession of accused Ershad Miah. He stated that on 16.02.2012 accused Ershad was produced before him for recording his confession under Section 164 of the Code of Criminal Procedure and he recorded his confession after giving him three hours time for reflection of memory and on compliance of all procedure as mentioned in the prescribed form. The witness proved his four signatures on above confession which was marked as Exhibit Nos.1, 1/1, 1/2, 1/3 and 1/4. He red over the confession to accused Ershad who accepted the same as correct and gave signatures on the same. The confession made by accused Ershad is reproduced below:

আমি অনুমান এক বছর আগে একটা ডাকাতির মামলায় জেল খেটে
বের হই। জেল থেকে বের হওয়ার অনুমান ১০ দিন পর আতাউর
আমাকে বলে একটা কাজ করতে হবে। আমি বলি কি কাজ। সে
বলে একটা লোককে চর থাপ্পর দিতে হবে। সে বলে কাজটা

মনতলায়। এর প্রায় ৪/৫ দিন পর আতাউর আমাকে ফোন করে বলে তুমি কোথায় আমি বলি বাড়িতে। সে আমাকে আমিরের বাড়িতে আসতে বলে। আমিরের বাড়িতে যাওয়ার সময় আমাদের গ্রামের একটি ছেলে বলে কই যাছ। আমি বলি আমিরের বাড়িতে যামু। সে বলে সেও যাবে। তাকেও নাকি আতাউর ফোন দিছে। আমিরের বাড়িতে গেলে দেখি যে সেখানে ৬/৭ জন মানুষ। সেখানে আতাউরকে পাই, সাথে নাছিরনগর থানার হরিপুর গ্রামের আবু লালকে পাই, তার ভাই আবু ছায়েদ, গোপালপুরের জানু, হালুয়াপাড়ার সফিক, আমির ও ছিল। আমরা ৮ জন সেখান থেকে বের হয়ে যাই। মনতলার দিকে। তখন আমাদের হাতে কোন অস্ত্র ছিল না। মনতলা গিয়ে ঘটনাস্থলের পাশে আমি আবু লালকে জিজ্ঞাসা করি যে, যে লোককে মারমু তারে কি দিয়া মারমু আমরা তো খালি হাতে। তখন আবুল লাল বলল আরো লোক আছে। তখন সামনে গিয়ে আরো ৭ জনকে পাই। তাদের একজন এর নাম জহির, পিতাঃ আব্দুর রউফ, রাজাপুরের ধনু, শ্রীধরপুরের রহিম, শ্রীধরপুরের কামাল, ধর্মগরের ফয়সল, হরষপুরের কাসেম, কাশিমনগরের জাবেদ কে পাই। আমি বলি যারে মারমু তাকে কেমনে চিনমু, তখন রহিম বলে তিনজন হিন্দু লোক আছে তারা চিনাইব। এদের নাম আতাউরে বলে হিমাংশু আর সুধাংশু, আরেকজনের নাম বলে নাই। আমির আমাদের থেকে একটু আগাইয়া যায় এবং বলে যায় যে কোন পুলিশ, টুলিশ আসলে কল দিমু। আমরা তখন রাস্তার উত্তর পাশে চলে যাই। দক্ষিন দিকে মোড় নিয়ে তার বাড়ির গেইট দিয়ে

টুকি। মোটা করে একটা লোক নাম হিমাংশু টিপু বলে একজন/লোককে ডাক দেয়। তখন টিপু দরজা খুলে। আমরা পরের টিমের ৭/৮ জনের কাছ থেকে আগেই রাস্তায় আসার সময় দা, লাঠি, ফিকল নিয়ে রেডি হয়ে আসছিলাম। আমার হাতে ছোট একটা দা ছিল। টিপু দরজা খোললে সবাই ঘরে টুকি। আমি চলে যাই টিপুর বাবার রুমে। অন্যান্যদের মধ্যে জহির, আতাউর ফয়সল, রহিম, আবু লাল, কাসেম, হরমুজ, ধনু এরা টিপুর রুমে ঢুকে। টিপুর বাবা মুরব্বী মানুষ চিৎকার দিলে আমি দা দিয়ে পিঠে বাড়ি দেই। পাশের রুম থেকে টিপুর চিৎকার শুনতে ছিলাম। আর তাকে মারার শব্দ পাইতেছিলাম। গুরুচিৎকারে যখন আশে পাশের মানুষ চলে আসতেছিল তখন আমরা দৌড়াইয়া চলে আসি। পাশে একটা গ্রাম ছিল আউলিয়াবাদ সেখানের স্কুলে আমরা একত্রিত হই। তখন আমি জিজ্ঞাসা করি তোরা যে মারছত এতে কি বেশি কিছু হইছে। তখন রহিম কয় টিপু আমারে কুব মারতাইছিল আমি বুকে ঘা মারি। হরষপুরের কাশেম বলেছে আমি ২/৩ টা বারি মারছি। পরে কাশেম বলে আবু লালে আর আতাউর রগ কাইটা লাইছে। তখন আমরা তাদের বকাবকি করি যে তোরা লোকটারে ঘাই দিলে কেন, তখন জহির, রহিম, ফয়সল, কামাল, ধনু, জাভেদ, কাশেম অস্ত্র সস্ত্রগুলি নিয়ে চলে যায়। আর আমরা আমাদের রাস্তায় চলে যাই। আমি, আবু লাল, আতাউর, সফিক, জানু, হরজুম, আবু সায়েদ সহ রাস্তা থেকে আমিরকে নিয়ে আমিরের বাড়িতে পুনরায় একত্রিত হই। সেখানে আবু লাল বলে যে ২টা মোবাইল আনছি, একটা আবু লাল

নিয়া যায় আরেকটা হরমুজ নিয়া যায়। তখন আমরা যার যার পথে
 বাড়িতে চলে যায়। পরদিন শুনি লোকটা মারা গেছে। আমি
 আতাউরকে জিজ্ঞাসা করি তোরা যে লোকটাকে (হেঁড়া) কাজটা ঠিক
 করছ নাই। আতাউর কইছে আমাদেরকে ৫০ হাজার টাকা দিব
 কইছে। টাকার জিম্মাদার ছিল শানু, মালু রাজাপুর গ্রামের বকুল।
 আমি পরদিন ঢাকায় চলে যাই।

In cross examination the witness stated that accused Ershad was produced to him from police custody. He did not see any mark of injury on the person of accused Ershad. He denied that the confession of accused Ershad was not made voluntarily.

PW2 Rokeya Rahman is a Judicial Magistrate who recorded the confession of accused Md. Abdul Malek @ Malu. She stated that on 23.12.2012 at 11.30 A.M. accused Abddul Malek @ Malu was produced before her for recording his confession. She recorded his confession after giving him three hours time for reflection of memory as provided in the prescribed form. The witness proved her eight signatures on above confessions which were marked as Exhibit Nos.2 series. She lastly stated that she read over the recorded confession to accused Abdul Malek @ Malu who accepted the same as

correct and gave signatures on the same. The confession of accused Abdul Malek @ Malu is reproduced below:

পাশিহাতা গ্রামের সুধাংশু, সুভাষ এবং হিমাংশু এরা তিনজন আপন ভাই। এদের সাথে টিপুর জায়গা জমি নিয়ে বিরোধ ছিল। ঝগড়ায় সুধাংশু টিপুকে বলে যে, তাকে দুনিয়া থেকে সরিয়ে দিবে। এরপর সুধাংশু একদিন আমার ধানের দোকানে যায়। সুধাংশু আমার দোকানে গিয়ে বলে টিপুকে সাইজ করতে হবে। আমাকে একথা বললে আমি তাকে সানু, পিতা আবু ভূইয়া, গ্রাম শ্রীধরপুর, বকুল-পিতা হাজী সেকান্দর, গ্রাম হরিপ্রসাদপুর এদের সাথে যোগাযোগ করতে বলি। তখন সুধাংশু আমার নিকট হতে সানুর মোবাইল নম্বর নিয়ে তার সাথে যোগাযোগ করে। উক্ত ঘটনা টিপুর হত্যার আনুমানিক ১৫ দিন বা মাস খানেক আগের। এরপর দিন সানু ও বকুল মনতলা বাজারে আসে। তখন দু'জনের সাথে আমার দেখা হয়। এরপর আমরা তিনজন সুধাংশুর পানের দোকানে গেলাম। ঐ দোকানে তখন সুধাংশুরা তিন ভাই তারা মিয়ার ছেলে গনি যার বাবার সাথে টিপুর জায়গা জমি নিয়ে বিরোধ ছিল সে ও ছিল। সুধাংশু তখন সানু এবং বকুলকে বলে যে, সে এদের দু'জনকে ৫০,০০০/- টাকা দিবে টিপুকে চড় খাঙ্গর দেওয়ার জন্য। এর তিন চার দিন পর বাহারের দোকানে সুধাংশু টাকাটা সানু ও বকুল কে দেয়। আমি ও তখন সাথে ছিলাম। বাহারের মনতলা বাজারে চায়ের দোকান, তার বাড়ি মনতলাতে। এরপর আতাউরের সাথে

শানু ও বকুল যোগাযোগ করে। আতাউরের বাড়ী গোপালপুর, মাধবপুর। শানু এবং বকুলের কথামত আতাউর লোকজন জোগার করে। এর ২/৩ আগে আমি কুমিল্লা বুড়িচং বড়সা বাজার ট্রাক দিয়ে ধান নিয়ে যাই। আমি ৩০০ মন ধান নিয়ে যাই। বড়সা বাজারের ইকবাল ভূইয়ার নিকট। ট্রাকের সাথে আমি আমার সাথে জাহেদ মিয়া যাই। ৩০০ মন ধান ইকবাল মিয়ার সিলেট বিক্রি করে চাল আনি। আমি প্রায় ১২০ বস্তা ২৮ নম্বর চাল আনি। ২ দিন পর বাড়ি এসে শনি টিপুকে মেরে ফেলেছে। তখন আমি শানু এবং বকুলকে টিপুর মারার বিষয়ে জিজ্ঞাসা করলে তারা জানায় আতাউর, এরশাদ, জহির, আবু মিয়া, মজিদ, সুধাংশু, হিমাংশু, মোশারফ, দুলাল, আরশাদ, জমির আলী এদের পিতার নাম যথাক্রমে দুধ মিয়া, ওমর আলী, গ্রাম- বোরহানপুর, দয়ারামপুর, দেওগাঁয়ের জাবেদ এরা সবাই মিলে টিপুকে মেরেছে। এছাড়া উক্ত ঘটনায় সফিক চৌধুরী, পিতা- হেলাল উদ্দিন চৌধুরী ও ছিল। আনুমানিক দুই বৎসর পূর্বে আতাউর, মধু মিয়াকে যার বাড়ি সিদরপুর তাকে খাইয়া ফেলতে চেয়েছিল তখন আতাউরকে আমি শানু এবং ৪/৫ জন পুলিশে ধরিয়ে দেই। এরপর আতাউর এই কারনে জেল খাটে। আতাউর বছর খানেক জেলে ছিল। জেল থেকে বের হয়ে আতাউর আমাকে হুমকি দেয় কিন্তু আমার বিরুদ্ধে কোন মামলা মোকদ্দমা করে নাই। এই কারনে আতাউর আমার নাম বলেছে। এই আমার জবানবন্দী।

In cross examination above witness stated that accused Abdul Malek @ Malu was taken to the CID custody on

21.12.2012 and he recorded his confession on 23.12.2012. She did not notice any mark of injury on the person accused Abdul Malek @ Malu. She denied that above confession was extracted by physical torture. She lastly stated that in above confession accused Malu did not involve himself in the occurrence he merely stated that he knew about the occurrence.

PW3 Hasina Akter Baby is the informant and wife of victim Ridwanul Mohsin Tipu. She stated that on 08.01.2011 at 1.00 A.M. she heard sounds from the grill of the baranda and she and her husband Ridwanul Mohsin Tipu went into the middle room and saw 10-12 masked persons were beating her father-in-law. Victim Ridwanul Mohsin Tipu having protested above beating 3/4 persons caught hold of victim Tipu and dragged him into the middle room and pushed her into her bed room. About 2-3 persons came to her bed room from the middle room and disclosed that the tendon of victim Tipu had been cut. She raised alarms and rushed to the middle room and found her husband victim Ridwanul Mohsin Tipu was murdered and kept beneath the cot. Her father-in-law and

mother-in-law rushed into the middle room. Two mobile telephones were lost. Her gold chain was snatched and her mother-in-law handed over her ear ring and gold chain to above persons. While the accused persons were beating her husband the musk of one person slightly displaced and she could see a part of his face. She identified above accused in the Test Identification Parade (TIP). She did not give signature on the TI Parade sheet. Her husband was retrieved from beneath the cot and she poured water on his head. After a while police and PW6 Md. Bodiuzzaman came and took her husband to hospital. They had a land dispute with accused Sudhangsu, Suvash and Tara Miah. She believes above persons alongwith their 10-12 associates had committed murder of her husband. The witness proved the FIR and her signature on the same which were marked as Exhibit Nos.3 and 3/1 respectively. In cross examination she stated that she could not recollect the date of Test Identification parade. She denied that she filed this belated and false case to give sufferings and plight to the accused persons.

PW4 Haji Mohammad Mohsin @ Mohammad Mohsin is the father of victim Ridwanul Mohsin Tipu. He stated that on 07.01.2011 at 1.00 A.M. 10-12 accused person by breaking the lock of the grill and bolt of the door entered into his dwelling house. All of them were masked. He raised alarms and two accused persons started beating him with a rod. Victim Ridwanul Mohsin Tipu and his wife PW3 Hasina came in to his room and protested above beating. About 5-6 miscreants caught hold of his son and kicked and pushed him in his room and confined him there. At about 1.20 A.M.-1.25 A.M. PW3 Hasina screamed and stated that victim Ridwanul Mohsin Tipu had been murdered. He and his wife rushed to the middle room and found his son beneath the cot. He retrieved his son and poured water on his head. They found a mark of dagger blow on his left chest and injuries on the left leg, left knee and right leg. Accused persons struck three blows on him and left. About 10 minutes later police and PW6 Bodiuzzaman came and took victim Ridwanul Mohsin Tipu to the hospital who died there in the morning. His wife handed over gold ornaments, chain and ear rings to above miscreants.

They took away two mobile telephone of his wife. He had land dispute with accused Sudhangsu, Suvash and Habibur Rahman and he suspects that above persons alongwith their associates had murdered his son. On 09.01.2011 police recovered wooden door, wooden bolt, one iron angle and one gate of the baranda and seized those by a seizure list and he gave signature on the same. The witness proved above seizure list and his signature on the same which were marked as Exhibit Nos.4 and 4/1 respectively. On 10.01.2011 police recovered blood stained T-shirt, genji and lungi of victim Ridwanul Mohsin Tipu by a seizure list and he gave signature on the same. The witness proved above seizure list and his signature on the same which were marked as Exhibit Nos. 5 and 5/1 respectively. On 12.01.2011 police seized one 9 inch long dagger with a plastic handle by a seizure list and he gave signature on the same. The witness proved above seizure list and his signature on the same which were marked as Exhibit No.6 and 6/1 respectively. The witness also proved above seized dagger which were marked as Material Exhibit Nos.O. In cross examination he stated that he mentioned the names of

the accused persons on the basis suspicion. He could not recognize any accused person.

PW5 Zahir Miah stated that on 07.01.2011 at A.M. 10/12 unknown persons entered into the occurrence house by breaking the lock and door. In the morning he went to the Nusra Hospital and saw injuries on the left breast, wrist, knee and right leg of victim Ridwanul Mohsin Tipu. There was a quarrel over land dispute between accused Sudhangsu, Suvash and Habibur and victim Tipu and he pacified above quarrel. During above quarrel accused Sudhangsu was armed with a dao and he threatened victim Ridwanul Mohsin Tipu with dire consequence. In cross examination he stated that he did not see the occurrence nor he visited the occurrence house. Accused Shanu submitted a petition against Khorshed and others and they were sent to jail. Accused Shanu was an honorable person.

PW6 Md. Bodiuzzaman stated that on receipt of information about the occurrence he rushed to the occurrence house at 1.45 A.M. and found victim Ridwanul Mohsin Tipu in the middle room with marks of injuries. He and 2-3 police

persons took victim Ridwanul Mohsin Tipu to Nusra Hospital where the Doctor declared him dead. Police prepared inquest report of the dead body of victim Tipu in his presence and he gave signature on the same. The witness proved the inquest report and his signature on the same which were marked as Exhibit Nos.7 and 7/1 respectively. He saw marks of injuries on the left chest, right and left hand and left and right legs. On the next day at 5.30-6.00 P.M. police seized the broken door, broken grill and one wooden bolt in his presence and he gave signature on the same. The witness proved above seizure list and his signature on the same which were marked as Exhibit Nos.4 and 4/1 respectively. On 26.02.2011 police recovered and seized a mobile phone from Amanullah Bodda and he gave signature on the seizure list as a witness. The witness proved above seizure list and his signature on the same and seized mobile telephone which were marked as Exhibit No.8, 8/1 and Material Exhibit No.II respectively. Accused Ridwanul Mohsin Tipu had dispute with accused Sudhangsu, Suvash and Tara Mia over the sewerage beside his house and for above enmity they had murdered victim Tipu. He did

not know who informed police and police went to the occurrence house before him. Accused Shanu is an honorable person and he helped people through various activities. Above Shanu complained to police against Khorshed and others and they were sent to Jail and Shanu was a witness to a case against accused Aatur and others. Due to above malice accused Shanu was implicated in this case and accused Shanu did not have any enmity with victim Tipu.

PW7 Md. Lal Miah @ Lal Kha stated that after getting news of the occurrence he went to the Nusra Hospital and saw the dead body of victim Ridwanul Mohsin Tipu with marks of injuries on chest, hands and legs. About 15 days before above occurrence he pacified a quarrel between victim Ridwanul Mohsin Tipu and accused Suvash and Sudhangsu over passage of water. Accused Suvash and Sudhangsu threatened accused Ridwanul Mohsin Tipu with murder. On 26.02.211 police recovered and seized a mobile telephone from Aman Ullah and he gave signature on above seizure list which were marked as Exhibit Nos.8 and 8/1. In cross examination he stated that there was a case between victim Ridwanul Mohsin

Tipu and accused Sudhangsu but he does not know if above case was won by the accused persons. Accused Shanu is from an honorable family and he was involved in various social activities and he was not involved in any bad works.

PW8 Md. Safar Ali stated that he saw the dead body of victim Ridwanul Mohsin Tipu in the Nusra hospital with marks of injuries on chest, hands and legs and he saw the grill and door of the house of victim victim Tipu were broken. The mother of Ridwanul Mohsin Tipu disclosed that miscreants had taken gold ornaments and murdered her son. About 15 days back there was a quarrel between accused Suvash and Sudhangsu and victim Ridwanul Mohsin Tipu over drainage of water and above accused persons threatened victim Ridwanul Mohsin Tipu with murder. In cross examination he stated that his house is about half mile away from the occurrence place. He knew accused Shanu. He was a good man.

PW9 Zainal Miah gave identical evidence as that of PW8 Md. Safar Ali. He stated that he saw the dead body of victim Ridwanul Mohsin Tipu in the hospital with marks of injuries

on chest, legs and hands. He also saw broken door and grill of the house of victim Ridwanul Mohsin Tipu. The mother of victim Tipu stated that the miscreants had taken gold ornaments and mobile telephone and murdered her son. In cross examination he stated that accused Shanu was a good man.

PW10 Abdul Alim is the first Investigation Officer of this case who stated that he visited the place of occurrence and prepared inquest report of the dead body of victim Tipu. He proved above inquest report and his signature on above document which were marked as Exhibit No.7 and 7/2 respectively. He prepared sketch map of the place of occurrence along with an index thereof and seized wooden door, wooden bolt, iron angle and gate of the grill of the baranda of the house of victim Tipu by a seizure lists. The witness proved above sketch map, index, seizure list and his signatures of above documents which were marked as Exhibit Nos.9, 10, 11, 9/1, 10/1, 11/1 and 4 and 4/3 respectively. On 10.01.2011 he seized the blood stained T-shir, genji and lungi of victim Ridwanul Mohsin Tipu by a seizure list. He proved

above seizure list and his signature on the same which were marked as Exhibit No.5 and 5/2 respectively. On 12.01.2011 on the production of PW3 Hasina he seized a 9 inch long dagger by a seizure list. The witness proved above seizure list and his signature on the same which were marked as Exhibit Nos.6 and 6/2 respectively. On 26.02.2011 he recovered a silver color Samsung mobile telephone from the possession of Amanullah and seized the same. The witness proved above seizure list and signature on the same which were marked as Exhibit No.8 and 8/3 respectively. He forwarded the dead body of the victim Ridwanul Mohsin Tipu for post-mortem examination and recorded the statements of 10 PWs under Section 161 of the Code of Criminal Procedure. The witness proved above mentioned seized articles, namely blood stained genji, lungi and wooden bolt, door angle and dagger which were marked as Material Exhibit Nos.I and II series. In cross examination he stated that nobody said to him that accused Shanu was involved in the occurrence. Accused Shanu was a respectable person of the locality. He went to the occurrence house within 15 minutes and retrieved the victim from beneath the cot and

took him to the hospital. The witness lastly stated that the occurrence took place at 1.00 A.M. and they went to the occurrence place within 15-20 minutes but FIR was lodged on 01.01.2011 at 16.30 hours. No explanation has been given in the FIR as to above delay of 56 hours. None of the 10 Prosecution Witnesses whose statements he recorded under Section 161 of the Code of Criminal Procedure mentioned to him the name of any accused.

PW11 Md. Dostogir Ahmed @ Golam Dostogir Ahmed is the second Investigation Officer of this case who stated that he recovered and seized a Simense mobile telephone set from the possession of Umed Ali and recorded his statement under Section 161 of the Code of Criminal Procedure. The witness proved above seizure list and his signature on the same which were marked as Exhibit Nos.12 and 12/1 and above mobile telephone set which was marked as Material Exhibit Nos.III. In cross examination he stated that he could not find out in whose name above seized mobile telephone set was registered.

PW12 Razib Kumar Biswas is a Judicial Magistrate who held the Test Identification Parade on 25.07.2012. He stated that he conducted above Test Identification Parade at 1:10 ratio and PW3 Hasina identified accused Mosharaf and he recorded her statement in the prescribed form. The witness proved above TIP form which were marked as Exhibit No. 13 and 13 series. In cross examination he denied that he did not organize above Test Identification Parade in compliance with relevant Rule and Practice.

PW13 Syed Mahbubul Islam is a Judicial Magistrate who recorded confession of Aman Ullah under Section 164 of the Code of Criminal Procedure. The witness proved above confession and his 5 signatures on the above document which were marked as Exhibit Nos.14 series. In cross examination he denied that he did not record above confession on compliance of relevant provision of law and procedure.

PW14 Syed Imroz Tareq is the third Investigation Officer of this case who stated that he arrested accused Ershad and produced him before the Judicial Magistrate for recording his confession under Section 164 of the Code of Criminal

Procedure. He also facilitated the organization of Test Identification Parade in which accused Mosharaf was identified. In cross examination he stated that in the statements under Section 161 of the Code of Criminal Procedure no Prosecution Witness told to him anything about the involvement of any accused person in the murder of victim Tipu. In the FIR the informant did not mention that she or any member of her family could see and recognize any accused person. In his confession accused Ershad stated that Dhanu Mia of Rajapur was involved in the above occurrence but in his investigation he did not find any Dhanu Mia in Rajapur. In above confession Ershad further mentioned the names of Rahim and Abul Kashem. But he could not determine if above persons were in Sylhet Jail in connection of Session Case No.357 of 2009. He arrested Ershad on 10.01.2012 and recorded his statement under Section 161 of the Code of Criminal Procedure on 15.02.2012 and produced him before a Judicial Magistrate for recording his confession on 16.02.2012. He denied that he extracted a false and concocted confession from Ershad subjecting him to physical torture and he did not

conduct the investigation properly. He denied that accused Sudhangsu and Suvash filed C.R. Case No.15 of 1995 and obtained a decree against the father-in-law of the informant and for above cause they were falsely implicated in this case.

PW15 Md. Kamruzzaman Khan is the fourth and last Investigation Officer of this case who submitted charge sheet against the accused persons. He stated that on conclusion of investigation he submitted Charge Sheet No.375 dated 03.11.2013 under Sections 449, 380, 302, 114 and 34 of the Penal Code against 23 accused person. In cross examination he stated that in the confession of accused Ershad under Section 164 of the Code of Criminal Procedure, 1860 the names of Rahim, Dhanu and Kashem were mentioned. In reply to a question from the defence whether above persons were in jail in connection of S.C. Case No.357 of 2009 the witness stated that Dhanu Mia was in jail but he could not find out the location of Rahim and Abul Kashem. In his confession accused Abdul Malek did not mention the name of above mentioned Rahim, Dhanu and Abul Kashem. Similarly accused Malek stated the name of Sadik, Bahar and Jamir but accused Ershad

did not mention their names in his confession. He stated that accused Sudhansu and Suvash filed Civil Suit No.15 of 2009 against the informant but he did not know whether the judgment of above case was passed. The name of accused Mosharaf was not in the FIR but he found his name in the investigation. He did not sent up the person for trial from whose possession one mobile set was recovered because Dulal was responsible for above theft. He lastly stated that accused Sudhansu and Suvash had business in Montola Bazar.

PW16 Dr. Md. Omar Faruq conducted Post-Mortem Examination of the dead body of victim Ridwanul Mohsin Tipu and found following injuries:

(1) Penetrating wound on left chest below nipple

measuring 3" X $\frac{1}{2}$ " X cavity depth.

(2) 3 scratch mark on left forearm 2" each.

(3) Incised wound on anterior part of right ankle

measuring 3" X 1" muscle depth.

(4) Incised wound on left leg 1" X $\frac{1}{2}$ " X

muscle depth.

Opinion:- In their opinion death was due to shock and hemorrahage resulting from above mentioned injuries which were ante mortem and homicidal in nature.

The witness proved the post-mortem report and his signature on the same as well as the signatures of his colleague Dr. Kaiser Ahmed and Dr. Rezaul Karim which were marked as Exhibit Nos.15, 15/1, 15/2 and 15/3 respectively. In cross examination he stated that victim Ridwanul Mohsin Tipu died due to injury No.1 which was the penetrating wound on the left chest of victim Ridwanul Mohsin Tipu.

PW17 Constable No.758 Alamgir Khan carried the dead body of victim Ridwanul Mohsin Tipu to the morgue of the Sadar Hospital for post-mortem examination by a Chalan. The witness proved above chalan and his signature on the same which were marked as Exhibit No.16 and 16/1 respectively. He produced the blood stained genji and lungi of victim Ridwanul Mohsin Tipu to Sub-Inspector Abdul Alim in the police station on 10.01.2011. Sub-Inspector Abdul Alim seized above wearing apparel by a seizure list and he gave signature on the same as a witness. The witness proved above seizure list and his signature on the same which were marked

as Exhibit Nos.5 and 5/3 respectively. In cross examination he stated that he did not know anything about the occurrence of murder.

Above is all about the evidence oral, documentary and circumstantial adduced by the prosecution to bring home the charge leveled against 23 accused persons under Sections 302, 449, 380, 114 and 34 of the Penal Code.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the State submits that undisputedly victim Ridwanul Mohsin Ridwanul Mohsin Tipu was murdered on 08.01.2011 at 1.00 A.M. in his dwelling house due to the penetrating wound on chest and cut injuries on hands and legs. It is also not disputed that there was a long standing land dispute between accused Sudhangsu and victim Ridwanul Mohsin Tipu and the name of Sudhangsu was mentioned in the FIR as a suspect. In this case two accused persons namely Ershad and Abdul Malek made two separate confessions under Section 164 of the Code of Criminal Procedure. In above confessions above accused persons had disclosed the names of other accused persons who played roles of various kinds in organizing and implementing above pre-planned and cool blooded murder scheme. Accused Mosharaf was identified by PW3 Hasina

Akter Baby in the Test Identification Parade. PW3 Hasina was the wife of victim Ridwanul Mohsin Tipu and present in the occurrence house at the time of the occurrence. PW3 Hasina had lost her husband in the occurrence of this case, as such, she had no reason to falsely implicate accused Mosharaf in above murder. The prosecution had succeeded to prove the charge leveled against 23 accused persons under Section 302/34 and 449 of the Penal Code, 1860 by above mentioned circumstantial, documentary and oral evidence of competent witnesses as well as by confessions of two accused persons namely Ershad and Abdul Malek. On consideration of above legal evidence on record the learned Additional Session Judge has correctly convicted the accused persons under Sections 302, 34 and 449 of the Penal Code which calls for no interference.

Mr. Mansurul Haque Chowdhury, learned Senior Advocate for the accused-appellants namely Lal Miah @ Abu Lal and Amir Ali submits that above two accused persons were not suspected by the informant in the FIR. In this case two accused persons namely Ershad and Abdul Malek made

two separate confessions under Sections 164 of the Code of Criminal Procedure, 1898. Accused Abdul Malek did not mention the names of above two accused persons in his confession. No prosecution witness examined in Court mentioned the names of accused Lal Miah @ Abu Lal and Amir Ali. Accused Ershad alone mentioned the names of accused Lal Miah @ Abu Lal and Amir Ali. Above statement of accused Ershad made under Section 164 of the Code of Criminal Procedure, 1898 cannot be designated as a confession since he did not involve himself in the commission of murder of victim Ridwanul Mohsin Tipu. In above confession accused Ershad stated that he was in the room of PW4 Haji Mohammad Mohsin @ Mohammad Mohsin and he struck blows on his person but he was not present in the middle room where the occurrence of murder took place. The learned Senior Advocate lastly submits that confession of a co-accused cannot be used as legal evidence against another co-accused unless the same has been corroborated by other legal evidence. Except above alleged confession of co-accused Ershad there is not a single piece of legal evidence showing

the involvement of accused Lal Miah @ Abu Lal and Amir Ali in the murder of victim Ridwanul Mohsin Tipu. Moreover, above confession of accused Ershad has not been corroborated by the confession of co-accused Abdul Malek. The learned Additional Sessions Judge committed serious illegality in accepting above uncorroborated, isolated and exculpatory confession of a co-accused as legal evidence and using the same against accused Lal Miah @ Abu Lal and Amir Ali and most unlawfully convicted them on the basis of above confession which is not tenable in law.

Mr. Md. Aminul Islam, learned Advocate for accused-appellants Sudhangsu and Kamal Miah submits that the learned Additional Session Judge has recorded the impugned judgment and order of conviction and sentence against above two accused persons on the basis of confessions of co-accused Ershad and Malek but above two confessions are contradictory with each other and both above confessions contradict the prosecution case as set out in the ejahar and in the evidence of PW3 Hasina Akter Baby, PW4 Haji Md. Mohsin and PW6 Md. Badiuzzaman. Above prosecution

witnesses had made out a case punishable under Section 396 of the Penal Code, 1860. Above Prosecution Witnesses stated that 10-12 masked and armed persons entered into the occurrence house by breaking open the gate and forcibly snatched gold ornaments and committed murder of victim Ridwanul Mohsin Tipu. But above two confessions provide a completely different narrative of the occurrence and converted the case into one under Sections 302/34 of the Penal Code. Undisputedly accused Sudhangsu Sen was not physically present in the occurrence place. As such the recording of order of conviction under Section 302/34 of the Penal Code against accused Sudhangsu Sen is misconceived and not tenable in law. The learned Advocate further submits that there was a land dispute between Ridwanul Mohsin Tipu, Sudhangsu Sen, Habibur Rahman and Tara Miah. Above Habibur Rahman was not sent up for trial by the Investigation Officer. PW15 Sub-Inspector Md. Kamruzzaman Khan has admitted that for above land dispute accused Sudhangsu Sen filed Civil Suit No.15 of 2009 against the informant and her family and obtained a decree. Above Sudhangsu Sen is a law abiding

business person and he had no role in the commission of dacoity and murder of victim Ridwanul Mohsin Tipu. In this case no prosecution witness examined by four Investigation Officers under Section 161 of the Code of Criminal Procedure has disclosed the name of accused Sudhansu. Co-accused Ershad did not mention the name of accused Sudhansu in his confession under Section 164 of the Code of Criminal Procedure. It is true that co-accused Malek has mentioned in his confession that Sudhangsu paid Tk.50,000/- to Shanu and Bakul in the shop of Bahar for giving victim Ridwanul Mohsin Tipu a good lesson. But above Bahar or any other witness was not examined by the prosecution to corroborate above claim of co-accused Malek. Above confession of Malek cannot be termed as a confession since above accused did not involve himself directly or indirectly with the commission of murder of victim Ridwanul Mohsin Tipu. The learned Additional Session Judge failed to appreciate the meaning of confession and the legal value of confession of an accused against another co-accused and most illegally used above unlawfull evidence against accused Sudhangsu, Jamir, Zahir and Kamal Miah and

erroneously convicted above accused persons under Sections 302, 34 and 449 of the Penal Code which is not tenable in law.

Mr. Gouranga Chandra Kar, learned Advocate for appellants Shanu Bhuiyan and Javed Miah @ Javed @ Sabuj submits that above accused persons were not suspected by the informant nor any prosecution witness has mentioned their names in their evidence in Court or in their statements made to the Investigating Officer under Section 161 of the Code of Criminal Procedure. Co-accused Ershad stated in his confession that accused Shanu and Bakul received Tk.50,000/- from co-accused Sudangsu for hiring goons for giving slaps and fists to victim Ridwanul Mohsin Tipu. But he did not mention the mobile number of Shanu or the amount of money Shanu received from co-accused Sudhangsu. It has been alleged that above payment was made in the shop of Bahar but Bahar was not examined in this case. PW5 Jahir Miah, PW6 Md. Badiuzzaman, PW7 Md. Lal Miah, PW8 Md. Safar Ali, PW9 Joynal Miah, PW10 Abdul Alim and PW14 Syed Imroz Tareq have stated that accused Shanu was an educated, wealthy and honorable person of the locality. As far as

accused Javed is concerned co-accused Ershad has mentioned him as an inhabitant of Kashimnagar. Above co-accuseds Ershad and Malek did not implicate themselves in the commission of murder of victim Ridwanul Mohsin Tipu and their above evidence against accused Shanu and Javed has not been supported by any other evidence on record. As such the learned Additional Session committed serious illegality in convicting accused Shanu and Javed on the basis of above confession under Sections 302/34/449 of the Penal Code which is not tenable in law.

Mr. S. M. Alim, learned Advocate for accused-appellant Abdul Malek @ Malu submits that no prosecution witness has given evidence alleging complicity of accused Abdul Malek @ Malu in the commission of murder of victim Ridwanul Mohsin Tipu. It was co-accused Ershad who mentioned the name of accused Abdul Malek and stated that Malek was the custodian of the money given by co-accused Sudhangsu Sen. But in his confession accused Malek did not confess that he was the custodian of above money.

Above confession was obtained by physical torture but the learned Additional Session Judge failed to appreciate above aspect of the case and most illegally accepted above involuntarily given untrue confession as a legal evidence and used the same against accused Malek as well as other co-accused persons and passed the impugned judgment and order of conviction and sentence under Sections 302/34 of the Penal Code which is not tenable in law.

Mr. M. Sayed Ahmed, learned Senior Advocate for the appellant Md. Mosharaf submits that he was not suspected by the informant as an assailant of victim Ridwanul Mohsin Tipu in the ejahar or in her evidence in Court as PW3. In fact no prosecution witness has disclosed the name of accused Mosharaf in his evidence in Court. Two co-accused namely Malek and Ershad gave two separate confessions under Section 164 of the Code of Criminal Procedure but none of them has disclosed the name of accused Mosharaf as an accomplice. A Test Identification Parade was organized on 25.07.2012 after more than $1\frac{1}{2}$ years of the occurrence and accused Mosharaf was allegedly identified in above TI parade

by PW3 Hasina Akter Baby. In her evidence PW3 Hasina Akter Baby has stated that she did not mention in the ejahar which was lodged after 39 hours of the occurrence that she identified any accused person and she did not give signature in the Test Identification Parade sheet. In view of above evidence of PW3 Hasina there was no legal basis for holding above TI parade and identification of accused Mosharaf. PW3 Hasina Akter Baby did not mention any role allegedly performed by accused Mosharaf in the commission of murder of victim Tipu. But the learned Additional Session Judge failed to consider above materials on record and most illegally accepted above unfounded and belated TI parade into consideration and convicted accused Mosharaf on the basis of the same under Sections 302/34/449 of the Penal Code which is not tenable in law.

Mr. M. Ali Murtoza, learned Advocate for appellant Jhanu Mia @ Jhanna Chora submits that the name of accused Janu Miah was mentioned only in the confession of co-accused Ershad. Co-accused Abdul Malek did not mention his name in his confession under Section 164 of the Code of Criminal

Procedure. Nor any other prosecution witness examined in Court or examined by the Investigating Officer under Section 161 of the Code of Criminal Procedure has mentioned the name of accused Janu Mian as an accomplice. The confession of accused Ershad is not in fact a confession since he did not confess to have participated in the commission of murder of victim Ridwanul Mohsin Tipu nor above confession has been supported by a single piece of legal evidence on record. As such the learned Additional Session Judge committed serious illegality in using above untrue confession against accused Janu Miah and convicting him on the basis of the same under Sections 302/34/449 of the Penal Code which is not tenable in law.

Ms. Sadia Tasnim, learned Advocate for appellant Ershad submits that accused Ershad was arrested by police on 10.01.2012 on suspicion after about one year of the murder of victim Ridwanul Mohsin Tipu accused Ersad was taken on police remand for three days and after above remand a false confession was extracted from him on 16.02.2012. Above confession was not given by accused Ershad voluntarily nor

the same was true. No prosecution witness has disclosed the name of accused Ershad. In above confession accused Ershad did not involve himself in the commission of murder of victim Ridwanul Mohsin Tipu nor he was present in the middle room where above murder occurred. Above confession of Ershad has not been corroborated by any other evidence on record and the same was contradictory to the prosecution case as made out in the FIR. But the learned Additional Session Judge most illegally used above confession as legal evidence against accused Ershad and other accused persons which is illegal and not tenable in law.

Ms. Sadia Tasnim, learned Advocate for appellants Bakul Kha, Abu Sayed, Dulal Miah, Mostaq Ahmed @ Foysal, Hormuz Ali, Jahirul Islam, Abul Kashem and Ataur Rahman adopted the arguments submitted by the learned Advocates for appellants Abu Lal @ Lal Miah, Sudhangsu Sen, Kamal Miah, Jahir, Shanu Bhuiyan, Javed Miah, Ershad Mia, Abdul Malek @ Malu and Md. Mosharaf. The learned Advocate further stated that this is a case of no evidence as far as above accused persons are concerned. But the learned Additional

Session Judge failed to appreciate above materials on record properly and most illegally convicted above accused persons under Sections 302/34/449 of the Penal Code, 1860 which is not tenable in law.

Mr. Hafizur Rahman Khan, State appointed Defence Advocate for accused Aatur Rahman and Abul Kashem stated that above two accused persons were not suspected in the ejahar. No prosecution witness has disclosed their names as accomplices nor they gave any confession under Section 164 of the Code of Criminal Procedure. The name of accused Aatur Rahman has been mentioned in the confessions of co-accused Ershad and Malek and the name of accused Abul Kashem has been mentioned only by co-accused Ershad in his confession under Section 164 of the Code of Criminal Procedure. Above two confessions of above co-accused persons were not made voluntarily nor they were proved to be true. As such the learned Additional Sessions Judge committed serious illegality in convicting above two accused persons on the basis of above uncorroborated confessions of co-accuseds under Sections 302/34/449 of the Penal Code which is not tenable in law.

We have considered the submissions of the learned Advocates for respective parties and carefully examined all materials on record including the ejahar, inquest report, post-mortem report, charge sheet, oral evidence of prosecution witnesses and two confessions made by accused Ershad and Malek under Section 164 of the Code of Criminal Procedure and other materials on record.

Undisputedly PW3 Hasina Akter Baby and PW4 Hazi Mohammad Mohsin the wife and father respectively of victim Ridwanul Mohsin Tipu were present in the occurrence house at the time of the occurrence and they saw the marks of injury on the person of victim Ridwanul Mohsin Tipu and PW6 Md. Badiuzzaman and PW10 Sub-Inspector Abdul Alim arrived in the occurrence house within 15 minutes and took above victim to hospital. PW3 Hasina, PW4 Hazi Mohsin, PW6 Bodiuzzaman and PW10 Alim found mark of a penetrating wound on the left side of chest and cut injuries on both hands and legs of victim Ridwanul Mohsin Tipu. The inquest report of the dead body of victim Ridwanul Mohsin Tipu was prepared by PW10 Abdul Alim on 08.01.2011 at 8.30 A.M. at

Nusra Hospital. Above inquest report (Exhibit No.7) mentions of the bleeding injury on the left side of chest and cut injuries on hands and legs of victim Tipu. The post-mortem examination of the dead body of victim Tipu was done by a three member team comprising PW16 Dr. Md. Omar Faruq and Dr. Kaiser Ahmed and Dr. Rezaul Karim on 08.01.2011. In his evidence as PW16 Dr. Md. Omar Faruq stated that they found a penetrating wound on the left chest and three scratch marks on left forearm and two incised wound on anterior part of right ankles and left leg. In cross examination he stated that penetrating wound on the chest caused the death of victim Ridwanul Mohsin Tipu. Above mentioned PW3 Hasina Akter Baby, PW4 Hazi Mohammad Mohsin, PW10 Abdul Alim and PW16 Dr. Md. Omar Faruk were subjected to cross examination by the defence but their above evidence remained unshaken, mutually corroborative and credence inspiring.

On consideration of above documentary and oral evidence of competent witnesses we hold that the prosecution has succeeded to prove that victim Ridwanul Mohsin Tipu was murdered any time during at 1.00 A.M. to 1.30 AM on

08.01.2011 in the middle room of his dwelling house by causing a penetrating wound on his chest and cut injuries on hands and legs by legal evidence. As such the prosecution has succeeded to prove beyond reasonable doubt the place, manner, date and time of the occurrence of murder of victim Ridwanul Mohsin Tipu by legal evidence.

Now let us proceed to examine how far the prosecution has succeeded to prove the complicity of 20 appellants accused persons namely 1. Sudhangsu Sen, 2. Suvash Sen, 3. Shanu Bhuiyan, 4. Ershad Miah, 5. Abdul Malek @ Malu, 6. Ataur Rahman, 7. Javed @ Sabuz, 8. Mostaq Ahmed @ Foyasal, 9. Harmuz Ali, 10. Jahirul Islam @ Jahir, 11. Janu Miah @ Janna Chora, 12. Jahir Miah, 13. Abul Kashem, 14. Lal Miah @ Abu Lal, 15. Mosharaf, 16. Bakul Kha, 17. Amir Ali, 18. Kamal Miah, 19. Abu Sayed and 20. Dulal Miah in the commission of above murder of victim Ridwanul Mohsin Tipu by legal evidence.

Undisputedly PW3 Hasina and her father-in-law PW4 Hazi Mohammad Mohsin, the informant and wife of victim Tipu and the father of above victim respectively were present

in the occurrence house at the time of above occurrence. As such it was very usual for them to see and identify the assailants who committed the murder of victim Ridwanul Mohsin Tipu. But both in the ejahar and in their evidence in Court PW3 Hasina Akter Baby and PW4 Hazi Mohammad Mohsin have corroboratively stated that all 10-12 assailants who entered into their house by breaking open the gate and murdered victim Tipu were masked. As such they could not identify any assailant and PW3 Hasina did not mention the name of any person as an assailant of victim Ridwanul Mohsin Tipu in the ejahar.

It is true that in the ejahar and in their evidence PW3 Hasina and PW4 Mohsin have stated about a land dispute of victim Ridwanul Mohsin Tipu with accused Sudhangsu, Habibur Rahman and Suvash Sen and they suspected they above persons might have murdered victim Tipu by hired goons.

It is well settled that a suspicion how strong the same may be cannot be a substitute of legal evidence. The existence of previous enmity or dispute may go both ways. A person

may commit murder of his enemy to win the dispute and on the reverse an enemy may be falsely implicated in a Criminal Case to give him a lesson.

The name of accused Mosharaf did not appear in the ejahar or in the evidence of any prosecution witness excepting PW3 Hasina. Two co-accused Ershad and Malek gave two separate confessions under Section 164 of the Code of Criminal Procedure but none of them had disclosed the name of accused Mosharaf. But out of blue a Test Identification Parade was held in the Hobigonj District Jail on 25.07.2012 after more than $1\frac{1}{2}$ years of the occurrence and PW3 Hasina Akter Baby allegedly identified Mosharaf as an accomplice. PW3 Hasina claimed that while the accused persons were beating victim Tipu the musk of one accused slightly removed and she could see a side of his face. But in her evidence PW3 Hasina stated that the intruders dragged victim Tipu into the middle room and they gave beatings to PW4 Mohsin. She did not claim that victim Tipu was subjected to beatings in her presence. PW3 Hasina did not mention the color, age, height or feature of the accused whose partial face she allegedly saw.

As mentioned above the ejahar of this case was lodged after 39 hours of the murder although police rushed to the occurrence house within 15 minutes of the occurrence. Since PW3 Hasina did not mention anything about above important facts in the ejahar her above evidence appears to be subsequent embellishment.

A Test Identification Parade could be held lawfully if a specific case was made out in the FIR that any or some accused person were seen by any victim or any eye witness who remembers their physical features i.e. color, height, hair and look etc and above victim or witness would identify above unknown accused if shown again. In the absence of such a clear case in the FIR or statement of any victim or witness made immediately after the occurrence and there is no legal scope for organizing a Test Identification Parade after $1\frac{1}{2}$ years of the occurrence and identifying a person as an accomplice.

In above view of the materials on record we hold that the so called Test identification Parade held on 25.07.2012 by PW12 Rajib Kumar Biswas was unlawful and the same does

not deserve any consideration at all. The impugned judgment and order of conviction and sentence passed by the learned Additional Sessions Judge against accused Mosharaf on the basis of above Test Identification Parade is unlawful and liable to be set aside.

The impugned judgment and order of conviction and sentence is based on two confessions of accused Ershad and accused Malek.

A Confession is an admission to guilt. If the maker of the confession does not implicate himself with the commission of the offence in any way the same cannot be designated as a confession. An order of conviction and sentence can be safely and lawfully recorded against an accused on the basis of his confession if the same was made voluntarily and proved to be true. The voluntariness of a confession can be proved by the recording Magistrate showing that the confession was recorded on full compliance of the provisions as set out in Sections 164 and 364 of the Code of Criminal Procedure. As far as the truthfulness of the confession is concerned that can be proved by other legal evidence on record as to the manner,

date, time and motive, if proved, of the occurrence and the tool or weapon used in the commissions of the offence and the mutual corroboration of the confessions if there are more than one.

Now we shall proceed to scrutinize above two confessions one after another to see if those confessions were made voluntarily and those were proved to be true.

PW1 Jiadur a Judicial Magistrate recorded the confession of accused Ershad on 16.02.2012 under Section 164 of the Code of Criminal Procedure and PW2 Rokeya Rahman another Judicial Magistrate recorded the confession of accused Abdul Malek on 23.12.2012 under Section 164 of the Code of Criminal Procedure. Both above Magistrates have consistently stated in their respective evidence in Court that they recorded above confessions on fulfillment of all legal requirements as provided in Section 164 and 364 of the Code of Criminal Procedure, 1898. They were subjected to cross examination by the defence but their evidence remained unshaken, consistent and credence inspiring. As such we accept that above two

confessions were made voluntarily by accused Ershad and Malek.

In his confession accused Ershad stated that now deceased accused Himangsu accompanied them to the occurrence house and he called out victim Tipu who showed up and opened the gate facilitating their entry into the occurrence house.

Above part of the confession of accused Ershad contradicts the prosecution case as set out in the ejahar as well as in the evidence of PW3 Hasina, PW4 Hazi Mohsin, PW5, Jahir Miah and PW6 Md. Badiuzzaman. It has been stated in the ejahar and in the evidence of PW3 Hasina, PW4 Hazi Mohammad Mohsin, PW5 Jahir Miah and PW6 Md. Badiuzzaman that accused persons broke the grill of the baranda and the lock of the door and forcibly entered into the occurrence house. Above broken grill and door were seized by the Investigating Officer by a seizure list in and seized broken door, grill and wooden bolt were produced at trial. As such above part of the confession of accused Ershad has been proved to be false.

PW16 Dr. Md. Omar Faruq stated that the death of victim Ridwanul Mohsin Tipu was caused due to the penetrating wound on his chest. In his confession accused Ershad has attributed above fatal blow to Rahim but PW15 Investigation Officer Kamruzzaman Khan did not sent up above Rahim for trial in the charge sheet. It was stated in the charge sheet that above Rahim was in jail for serving out life imprisonment in connection of another criminal case at the time of the occurrence of this case. As such part of the confession of accused Ershad was proved to be false.

In above confession accused Ershad further mentioned the name of Dhanu and Kashem and stated that they were members of the killing team. But PW15 Md. Kamruzzaman Khan stated in his evidence that at the time of murder of victim Tipu above Dhanu was in custody in connection of another Criminal case. As far as Abul Kashem is concerned he could not find out anyone namely Abul Kashem. As such above important part of the confession of accused Ershad has been proved to be false.

In above confession of Ershad did not involve himself in the commission of murder of victim Tipu. Nor he was present in the middle room of the occurrence house where victim Tipu was murdered. This is not understandable as to why instead of filling a case under Section 396 of the Penal Code against the accused persons this case was filed under Sections 302/34 and 449 of the Penal Code, 1860. Above confession of accused Ershad cannot be designated as a confession since the maker of the confession did not implicate himself with the commission of murder of victim Titu. In above view of the materials on record we hold that the alleged confession of accused Ershad was not at all a legal confession nor the same was true. The learned Additional Session Judge has committed serious illegality in accepting above statement of accused Ershad made under Section 164 of the Code of Criminal Procedure as a true confession and using above statement against accused Ershad and other co-accused persons and recording the impugned judgment and order of conviction and sentence which is not tenable in law.

As far as the confession of accused Abdul Malek @ Malu is concerned he did not see the occurrence of murder of victim Tipu nor he involved himself in the commission of above murder. He has stated as to the payment of Tk.50,000/- by the accused Sudhangsu for hiring goons for giving slaps and fists to victim Tipu. But accused Malek did not involve himself in the payment or receipt or keeping in custody of above Tk.50,000/-.

Accused Malek has confessed to have provided to accused Sudhangsu the mobile telephone number of co-accused Shanu so that accused Shanu can contract the goons. Accused Malek confessed that the payment of Tk.50,000/- was made to accused Shanu and Bakul in the shop of Bahar. But he did not mention what amount of money was paid to Shanu and Bakul individually. Above Bahar in whose shop above payment was made was not cited as a witness in the charge sheet nor he was examined as a prosecution witness in Court. Above confession of accused Abdul Malek contradicts the confession made by co-accused Ershad under Section 164 of the Code of Criminal Procedure. Accused Ershad stated that

the custodian of above mentioned Tk.50,000/- was Shanu, Bakul and accused Abdul Malek. But Abdul Malek did not confess that he was s custodian of above money. Accused Abdul Malek and Ershad both stated in their confessions that the killing team was organized and led by accused Ataur but there is no evidence on record that accused Shanu and Bakul paid above money to Ataur.

PW5 Jahir Miah, PW6 Md. Badiuzzaman, PW7 Md. Lal Miah, PW8 Md. Safar Ali, PW9 Joynal Miah and PW14 Syed Imroz Tareq have consistently stated that accused Shanu was a respectable man of the locality and he came out of a educated and well to do family and accused Shanu had no enmity with victim Ridwanul Mohsin Tipu. They have further stated that due to his enmity with co-accused Ataur accused Shanu was falsely implicated in this case. As such above part of the confession of accused Malek as to payment of Tk.50,000/- by accused Sudhangsu and Bakul has been proved to be false.

Accused Malek allegedly provided mobile phone number of accused Shanu to accused Sudhangsu to hire the

assailants to commit murder of victim Ridwanul Mohsin Tipu. But in above confession accused Malek could not mention the mobile number of accused Shanu nor the prosecution has succeeded to adduce any other evidence to prove that above confession of accused Malek was true. Accused Malek was a well to do man and a paddy businessman of the locality. There is no reason for him to receive Tk.50,000/- for hiring goons for giving victim Ridwanul Mohsin Tipu a good lesson.

On consideration of above materials on record we hold that above confession of accused Abdul Malek made under Section 164 of the Code of Criminal Procedure did meet criteria of a confession nor the same has been proved to be true by other legal evidence on record. As such above untrue statement of accused Abdul Malek made under Section 164 of the Code of Criminal Procedure did not attain the status of a legal evidence and the same could not be used against its maker accused Abdul Malek or against any other co-accused. But the learned Additional Session Judge has failed to appreciate above legal materials on record properly and most illegally accepted above so called confession as a legal

evidence and on the basis of the same most unlawfully convicted accused Malek and used above confession against other co-accused and convicted them under Sections 302/34/449 of the Penal Code which is not tenable in law.

In order to hold a person jointly liable for sharing common intention under Section 34 of the Penal Code, 1860 for commission of an offence his physical presence in occurrence place and sharing of common intention are necessary. Undisputedly accused Sudhansu was not present in the occurrence place nor he shared the common intention of commission of murder of victim Tipu. The learned Additional Session Judge has failed to appreciate the true meaning of Section 34 of the Penal Code and most illegally convicted him under Sections 302/34 of the Penal Code, 1860 which is not tenable in law.

The recording of a judgment and order of conviction and sentence both under Sections 302 and 449 of the Penal Code, 1860 against the same accused persons for commission of murder of the victim in his house is misconceived and against the provision of Section 71 of the Penal Code, 1860.

On consideration of above facts and circumstances of the case and materials on record we hold that the Test Identification Parade report of accused Mosharaf and two confessions of accused Ershad and accused Malek made under Section 164 of the Code of Criminal Procedure did not attain the status of legal evidence and those could not be the basis of any order of conviction and sentence. But the learned Additional Session Judge on the basis of above unlawful documents most illegally passed the impugned judgment of conviction and sentence against 22 accused persons and inflicted death penalty against 8 accused persons which is highly unfortunate, unlawful and not tenable in law.

In fact this is a case of no legal evidence. No prosecution witness has given evidence in support of the complicity of any accused person in the commission of murder of victim Tipu. In this case there was no eye witness who saw the accused persons committing murder of victim Tipu. No accused has made any true confession under Section 164 of the Code of Criminal Procedure. No incriminatory material was recovered from the possession of any accused person.

In above view of the materials on record we are unable to find any substance in this Death Reference which is liable to be rejected and all the Criminal Appeals and Jail appeals deserve to be allowed and the impugned judgment and order of conviction and sentence passed by the learned Additional Session Judge is liable to be set aside.

In the result, Death Reference No.119 of 2017 is hereby rejected and Criminal appeal Nos.9901 of 2017, 1044 of 2018, 1293 of 2018, 10047 of 2017, 10188 of 2017, 10188 of 2017, 10191 of 2017, 10725 of 2017, 10989 of 2017, 11385 of 2017, 11793 of 2017 and 14434 of 2017 are allowed and Jail Appeal Nos.384 of 2017, 385 of 2017, 390 of 2017, 451 of 2017 and 220 of 2019 are allowed.

The impugned judgment and order of conviction and sentence dated 23.08.2017 passed by the learned Additional Session Judge, Hobigonj in Session Case No.511 of 2014 arising out of Madobpur P.S. Case No.09(01)2011 corresponding to G.R. Case No.09 of 2011 convicting the accused persons, namely 1. Sudhangsu Sen, 2. Shuvas Sen, 3. Shanu Bhuiyan, 4. Ershad Miah, 5. Abdul Malek @ Malu, 6.

Ataur Rahman, 7. Javed @ Sabuz, 8. Mostaq Ahmed @ Foysol, 9. Harmuz Ali, 10. Jahirul Islam @ Jahir, 11. Jhanu Miah @ Janna Chora, 12. Jahir Miah, 13. Abul Kashem, 14. Lal Miah @ Abu Lal, 15. Mosharaf, 16. Bakul Kha, 17. Amir Ali, 18. Kamal Miah, 19. Abu Sayed and 20. Dulal Miah under Sections 302/34/449 of the Penal Code and sentencing them thereunder to death and imprisonment for life is set aside.

All the accused persons namely 1. Sudhangsu Sen, 2. Shanu Bhuiyan, 3. Ershad Miah, 4. Abdul Malek @ Malu, 5. Ataur Rahman, 6. Javed @ Sabuz, 7. Mostaq Ahmed @ Foysol, 8. Harmuz Ali, 09. Jahirul Islam @ Jahir, 10. Jhanu Miah @ Janna Chora, 11. Jahir Miah, 12. Abul Kashem, 13. Lal Miah @ Abu Lal, 14. Mosharaf, 15. Bakul Kha, 16. Amir Ali, 17. Kamal Miah, 18. Abu Sayed and 19. Dulal Miah are acquitted of the charge leveled against them under Sections 302/34/409 of the Penal Code, 1860.

Le all above nineteen accused persons namely 1. Sudhangsu Sen, 2. Shanu Bhuiyan, 3. Ershad Miah, 4. Abdul Malek @ Malu, 5. Ataur Rahman, 6. Javed @ Sabuz, 7. Mostaq Ahmed @ Foysol, 8. Harmuz Ali, 09. Jahirul Islam @ Jahir, 10.

Jhanu Miah @ Janna Chora, 11. Jahir Miah, 12. Abul Kashem, 13. Lal Miah @ Abu Lal, 14. Mosharaf, 15. Bakul Kha, 16. Amir Ali, 17. Kamal Miah, 18. Abu Sayed and 19. Dulal Miah be set at liberty at once if not wanted in connection with any other case.

Let the lower court's records along with a copy of this judgment be transmitted down at once.

Md. Ali Reza, J:

I agree.

*MD. MASUDUR RAHMAN
BENCH OFFICER*